

Court No. - 2

Case :- WRIT - C No. - 57869 of 2010

Petitioner :- Gaurav Gupta

Respondent :- Uperc And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- A.N. Singh, Mridul Tripathi

Hon'ble Vineet Saran, J.

Hon'ble Yogesh Chandra Gupta, J.

Heard learned counsel for the petitioner as well as Sri A.N.Singh for respondent no.1 and Smt. Mridul Tripathi for the respondent Nos. 2 and 3 and perused the record.

With the consent of the learned counsel for the parties this petition is being heard and disposed of finally without calling for a counter affidavit.

The case of the petitioner is that on an inspection conducted by the Electricity company on 11.12.2009 the sealed meter installed at the premises of the petitioner was found tampered. According to the respondent company the meter was not found working properly and the petitioner contends that the said meter which was installed at the premises of the petitioner be tested in accordance with law. He placed reliance on a Division Bench decision of this Court rendered in the case of *Smt. Amrawati Devi Versus Purvanchal Vidyut Vitran Nigam Limited and another [2009 (1)ADJ 430 (DB)]* and submits that the meter should be tested as per the ratio laid down in the aforesaid decision.

Smt. Mridul Tripathi, contesting the matter does not dispute the same. She states that the respondent Kanpur Electricity Supply Company shall ensure compliance of the aforesaid Division Bench decision and the meter shall be tested in accordance with the aforesaid decision.

In view of the aforesaid position, this petition is disposed of with the direction that the meter of the petitioner shall be got tested by the respondent nos. 2 and 3 in accordance with the provisions of the Electricity Supply Code as interpreted by the Division Bench in the case of Smt. Amrawati Devi (Supra).

Order Date :- 21.9.2010

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